

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 22, 2026 TIME: 8:30 A.M.

No. 23CV00741

KRUEGER v. FORMICO

PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

Parties to appear.

On May 5, 2026, the parties were ordered to take the following actions:

- Plaintiff directed to release the liens on 1100 Graham Hill Road.
- Defendant directed to complete the sale of 1100 Graham Hill Road.
- Defendant directed to identify another real property holding with at least \$1,000,000.00 in equity to be exchanged for 1100 Graham Hill Road as security.
- No liens to be recorded by defendant without Court approval.

On August 7, 2026, the parties appeared at this continued Motion to Enforce Settlement hearing. Counsel for plaintiff informed the Court that defendant continues to fail to comply with the terms of settlement and that the 1100 Graham Hill Road property was taken off the market. The Court continued the hearing to August 7, 2026 and then to this date for continued status of compliance with the Court's May 5, 2026 orders. [The Court's Minute Order of August 7, 2026 states that motion to enforce settlement was tentatively denied and continued for status of compliance with the Court's May 5, 2026 orders.]

On September 14, 2026, plaintiff filed a status report and defendant filed a declaration. Plaintiff asserts defendant took the property off the market on July 14, 2026, and then re-listed the property with an asking price of \$2,195,000.00.¹ Plaintiff seeks the following orders from the court: (1) requiring defendant to sign the Deeds of Trust attached to the Addendum to the Settlement Agreement; (2) ordering defendant to pay \$18,544.22 to plaintiff due and owing under the settlement agreement (defendant has paid \$4,000.00), (3) ordering defendant to reimburse plaintiff \$2,781.00 incurred in obtaining appraisals of his properties, and (4) awarding plaintiff \$31,590.00 in attorney's fees and costs for bringing these motions due to defendant's breaches of the Settlement Agreement and his failure to comply with the Court's May 5, 2026 orders. Defendant filed a declaration, stating delays are due to the non-cooperation of plaintiff and her counsel, and he maintains there is still a tax lien clouding title, preventing defendant from selling the property, that plaintiff was supposed to cure. (Decl. of Formico at ¶ 4.)

¹ Plaintiff asserts defendant stated at the May 5, 2026, hearing that he had an offer on the property for \$2,400,000.00 but refused to accept it. (Plaintiff's Update at p. 4.)